

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Denny Mayeda v. Grant Reynolds et al

21CV001212

DEFENDANT’S MOTION TO DISMISS COMPLAINT

TENTATIVE RULING: The motion is GRANTED. The Court orders the matter dismissed with prejudice.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Defendant Grant Reynolds (“Defendant”) moves, pursuant to California Code of Civil Procedure § 2023.030, subdivision (d),¹ for an order dismissing this case with prejudice.

Section 2023.030, subdivision (d) authorizes a court to impose a terminating sanction against anyone engaging in conduct that is a misuse of the discovery process. (See § 2023.030, subd. (d).) It provides that a terminating sanction may be imposed in the form of an order dismissing the action, or any part of the action, of that party misusing the discovery process. (*Id.*, subd. (d)(3).)

The Notice of Motion identifies 11 separate grounds for dismissal. (See Notice of Motion, pp. 1-3.) However, only 3 of those 11 grounds pertain to discovery. (*Ibid.*) Those grounds are as follows: (1) Since the date of the September 17, 2021 hearing on Plaintiff’s Motion for Injunctive Relief, Plaintiff has failed to seek any discovery from Defendant, (2) Since the date of the September 17, 2021 hearing, Plaintiff and/or Plaintiff’s former attorney have failed to file any responses to any of Defendant’s motions for discovery requiring Defendant to file motions to compel responses, and (3) Without further discovery responses, it will be difficult if not impossible to continue this case, let alone be able to fairly assess liability to Defendant. (*id.*, ¶¶ 7, 8, 11.)

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

B. DEFENDANT’S SHOWING

Defendant shows that the Court previously (1) imposed monetary sanctions against Plaintiff, in three separate orders dated April 9 and 24, 2026, for Plaintiff’s failure to respond to discovery propounded in October 2025, (2) deemed admitted the matters and genuineness of documents specified in Defendant’s Requests for Admission, Set One, and (3) ordered Plaintiff to provide responses and documents to Defendant’s Special Interrogatories, Set One, and Request for Production of Documents, Set Two. (Declaration of Grant Reynolds (“Reynolds Decl.”), ¶¶ 5, 8-11, Exh. F; see also 4/9/26 and 4/23/26 Minute Orders.) Defendant filed and served a Notice of Entry of those discovery orders on May 11, 2026. (*Id.*, ¶ 11; see also 5/11/26 Notices of Entry of Orders.) Defendant further shows that, as of the date on which Defendant’s Declaration was executed, June 12, 2026, Plaintiff has failed to comply with the Court’s discovery orders, in that no responses have been provided and no sanctions have been paid. (Reynolds Decl., ¶ 11.)

Defendant argues that this Court should therefore conclude that no responses will be forthcoming and to dismiss this case with prejudice.

C. DISCUSSION

If a party fails to obey an order compelling a response to interrogatories or document demands, the court may make those orders that are just, including the imposition of a terminating sanction under section 2030.030). (§§ 2030.290, subd. (c), 2031.300, subd. (c).)

Two facts are generally prerequisite to the imposition of non-monetary sanctions: (1) there must be a failure to comply with a court order; and (2) the failure must be willful. (*Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1102.) It is the moving party’s burden to demonstrate the responding party’s failure to obey the earlier discovery order. (*Corns v. Miller* (1986) 181 Cal.App.3d 195, 201.) Then the burden of proof shifts to the party seeking to avoid sanctions to establish a suitable justification for her conduct. (*Ibid.*)

Plaintiff has willfully not complied with the Court’s three discovery and sanctions orders dated April 9 and 24, 2026, as he has not provided initial responses and documents and has not paid the sanctions to Defendant. On this record, it is clear that the imposition of lesser sanctions did not accomplish the object of discovery—Plaintiff’s production of discovery responses and documents. “If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse.” (*Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 701-02 quoting *Doppes v. Bentley* (2009) 174 Cal.App.4th 967, 992.) “[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (*Id.*, at 702.)

Plaintiff’s repeated failure to comply with his discovery obligations and the Court’s orders is to the detriment of Defendant’s right to receive a fair trial. Moreover, Plaintiff has

submitted no opposition to Defendant’s discovery and sanctions motions, including the instant motion for terminating sanctions. Therefore, there is nothing in the record to suggest that any lesser remedy short of dismissal would change Plaintiff’s conduct. (See *Del Junco v. Hufnagel* (2007) 150 Cal.App.4th 789, 799-800 [holding that terminating sanctions were warranted when it became clear that the plaintiff had no intention of answering discovery or complying with court orders and had shown no interest in taking part in the case].)

Based on the foregoing, the Court finds that terminating sanctions are warranted. Accordingly, Defendant’s motion is GRANTED.

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Blue Sky Utility LLC et al v. Bright Power, Inc

24CV001768

DEMURRER TO CROSS-COMPLAINT

TENTATIVE RULING: The demurrer is SUSTAINED. Bright Power, Inc. is granted 10 Court days’ leave to amend the Cross-Complaint, limited however, to allegations relevant to causes of action sounding in fraudulent misrepresentation and/or fraudulent concealment.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Cross-Defendants Blue Sky Utility LLC, Blue Sky Utility 2021 IV LLC, Blue Sky Utility Holding LLC, Blue Sky Utility 2021 VII LLC, Blue Sky Utility 2021 XIII LLC, Blue Sky Utility 2021 XII LLC, Blue Sky Utility 2022 I LLC, and Blue Sky Utility 2022 II LLC (collectively Blue Sky) demur, pursuant to Code of Civil Procedure 430.10, subdivision (e), to the fourteenth and fifteenth causes of action asserted against them through the Cross-Complaint of Bright Power, Inc. (Bright Power) on grounds that the Cross-Complaint fails to allege facts sufficient to state either cause of action.

Each of the first thirteen causes of action (including two distinct causes of action labelled “Eleventh Cause of Action”) assert claims for breach of contract; each cause of action based on a unique contract. The “Fourteenth Cause of Action” purports to state a claim for fraudulent inducement (see *id.* at 22:6, *et seq.*) and the “Fifteenth Cause of Action” purports to state a claim for fraudulent concealment (see *id.* at 24:8, *et seq.*).

A complaint must contain “facts constituting the cause of action.” (Code Civ. Proc., § 425.10, subd. (a)(1).) “The party against whom a complaint or cross-complaint has been filed may object, by demurrer . . . to the pleading on . . . grounds [that] . . . (e) The pleading does not